

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Whitney Crow v. Puneet Singh et al

23CV001513

MOTION TO STAY CROSS-COMPLAINT

TENTATIVE RULING: The motion is DENIED.

Defendant and Cross-Defendant Isaac Al Ghazali moves, pursuant to Code of Civil Procedure § 128, subdivision (a)(8), for an order staying the cross-complaint filed on April 2, 2026, by Cross-Complainant Puneet Singh, Eshwaramma, Inc. Laxami, Inc., and Durga MA, Inc. (Subject Cross-Complaint) “until the family court determines the characterization of, and the parties’ respective interests in, the businesses at issue in the related dissolution, In re Marriage of SINGH and AL GHAZALI, Napa County Superior Court Case No. 25FL000156.” (Notice of Motion at 1:23-2:1.) In the alternative, Mr. Al Ghazali requests an order staying all civil discovery and discovery-related motion practice for the same period. (See Notice of Motion.) Mr. Al Ghazali so moves on grounds that “[t]hose crossclaims cannot fairly be decided until the Family Law Court resolves two questions that control them and that are squarely in dispute: who owns the three stores at the center of this case, and what [Mr. Al Ghazali’s] role in those stores was.” (Support Memo at 1:20-22.)

Mr. Al Ghazali’s assertion that ownership of the three stores is an issue in the family law matter is consistent with the nature of family law proceedings. However, Mr. Al Ghazali fails to persuade the Court that the questions of (1) whether he is an owner of one or more of the stores, and/or (2) whether he has a right to profits from operations of the stores, are at issue in the instant litigation.

He asserts that “[Ms. Singh’s] factual allegations are inexorably intertwined with breach of fiduciary duties as defined in the Family Code and which are before the Family Law court.” (Support Memo at 4:15-16.) Mr. Al Ghazali fails, however, to support the assertion by, for example, citing to pleadings in the family law action. (See *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal. App. 4th 927, 934 [“Rules of Court rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party’s theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide”].)

This failure is material as, generally, the fiduciary duties at issue in family law matters are those arising from the spousal relationship. Mr. Al Ghazali acknowledges this by arguing that “[w]here the conduct alleged concerns community-property businesses and community funds during the marriage, the governing duty is the mutual fiduciary duty spouses owe one another under Family Code § 721.” (Support Memo at 5:10-13.) He fails, however, to cite to any allegation in the subject Cross-Complaint alleging breach of these *spousal* fiduciary duties.

Rather, through the subject Cross-Complaint, Ms. Singh and the entity Cross-Complainants allege fiduciary duties arising from Mr. Al Ghazali’s role as an officer, employee,

and/or manager of one or more of the stores. (See *id.* at ¶¶ 72-73, 82, 121-122, 132-133.) Mr. Al Ghazali fails to suggest that any of *these* alleged fiduciary duties are at issue in the family law action.

Finally, the Court notes that the original Complaint in the action was filed nearly three years ago. Particularly in light of suggestions that discovery has not yet commenced, the Court is growing concerned about the age of the action. (See, for example, Code Civ. Proc., § 583.410, *et seq.*)

For the forgoing reasons, the Motion is DENIED.

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Julianne Wurm v. James Pitkow et al

24CV000921

**MOTION FOR ORDER SUBSTITUTING SUCCESSOR IN INTEREST FOR DECEASED
DEFENDANT AND CROSS-COMPLAINANT JAMES PITKOW**

TENTATIVE RULING: The motion is GRANTED.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court *or* emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTER

Defendants and Cross-Complainants Wild Horse Valley Property LLC and James Pitkow (“Decedent”), by and through their attorney of record, Flash Gordon, move, pursuant to Code of Civil Procedure sections 377.11, 377.31, 377.32, and 377.41,¹ and Probate Code sections 19001 and 19008, for an order substituting Martin B. Pitkow Jr., as successor in interest to Decedent for all purposes in the proceedings pending before this Court, including Decedent’s defense of Plaintiff’s complaint and Decedent’s cross-complaint.

B. PARTIES’ CONTENTIONS

Decedent died on July 14, 2026. (Declaration of Martin B. Pitkow Jr. (“M. Pitkow Decl.”), filed July 31, 2026, ¶ 3.) Defendants argue that Decedent’s brother, Martin B. Pitkow Jr., as successor trustee of the James E. Pitkow Trust, dated November 19, 2022, is Decedent’s

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.